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May 1, 2025

**Via Email**

Office of the Morgan County Attorney  
C/O Garrett Smith  
48 West Young Street  
Morgan, UT 84050

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**RE: Formal Notice of Intent to Sue — GRAMA Request Denial and Retaliatory Obstruction**

To the Morgan County Attorney:

Please take notice that I, Don Matthews, am issuing this formal legal notice of intent to sue Morgan County for multiple violations of Utah's Government Records Access and Management Act (GRAMA, Utah Code § 63G-2-101 et seq.), the Utah Constitution, and the First and Fourteenth Amendments to the United States Constitution.

On or around Thursday April 17, 2025, I submitted a lawful GRAMA request seeking public records, including officer personnel files, which are presumptively subject to disclosure under Utah law. I also requested a fee waiver under Utah Code § 63G-2-203(4), citing my role as a journalist and the significant public interest in the records sought. I was advised at that time by a county employee that providing an email address was the preferable way to go "these days".

My request was originally denied in bad faith by Kylie Earl whom not only denied it on the basis of requiring an address, but also arbitrarily and capriciously denied my fee waiver, giving no reason for the denial. Then, my appeal was initially rejected by Matt Wilson, who stated that a post office box "does not count" as an address and that he stood "100%" behind the advice of the County Attorney's office. This rejection disregards both the law and the

Constitution and was issued despite my clear documentation of previous retaliatory doxxing by other municipal agencies. The refusal to recognize my secure mailing address and the denial of the fee waiver constitute viewpoint discrimination, retaliation, and a denial of equal access to public information. I provided County Attorney Garrett Smith with my mailing address on Thursday, April 24, 2025.

To avoid immediate litigation, you are hereby given formal notice that you must:

1. Immediately release the requested records—including officer personnel records requested under GRAMA—in full and without redaction of non-exempt material; and
2. Do so at no cost, pursuant to the fee waiver provisions of GRAMA and the constitutional protections afforded to members of the press.

You have until the close of business today, Thursday, May 1, 2025, at 5:00 p.m. MDT, to comply with this demand. Failure to produce the records in full and at no cost by that deadline will result in the immediate filing of a Verified Petition for Judicial Review, Emergency Motion for TRO,

You are further placed on notice that I will seek injunctive relief, attorneys' fees, costs, and public interest damages, and that this matter will be referred to appropriate press outlets, oversight organizations, and transparency coalitions.

Please govern yourself accordingly.

Respectfully,

/s/ Don Matthews  
Investigative Journalist  
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